

בִּשּׁוּל עֲכוּיִים

Bishul Akum & the Kosher Cup

Coffee is cooked, and usually by a non-Jew — so why is nearly every posek lenient? The three classic rationales, plus gilui, bugs in the equipment, and what chalav akum does to your latte.

11 QUESTIONS · 45 SOURCES · POSKIM 1479–1982

4.1 Does mixing instant coffee powder with hot water constitute bishul akum when the hot water is provided by a non-Jew? (Avnei Yashpeh YD 1:139:2)

THE BOTTOM LINE למעשה

The Avnei Yashpeh examines whether the combination of non-Jewish-made powder and hot water (whether provided by a Jew or non-Jew) raises bishul akum concerns, and whether the kfei nmes's nature as a beverage ingredient affects the ruling.

ענין ב: Focuses on the act of mixing — whether a non-Jew adding hot water to the powder would constitute bishul akum and what a Jew's role in the preparation must be to avoid the prohibition. The Avnei Yashpeh discusses the requirement that a Jew participate in the cooking process to avoid bishul akum. He considers whether the powder, given its industrial pre-processing, still requires Jewish involvement in the final preparation step. He also notes that since kfei nmes dissolves upon contact with hot water (it becomes a liquid), this may affect its halachic categorization — echoing the discussion in Minchas Yitzchak 1:55 about viewing dissolved Nescafe as a liquid.

Avnei Yashpeh YD 1:139 ענין ב. Cross-reference Minchas Yitzchak 1:55 (liquid reframing) and Noda BiYehudah YD 36.



Avnei Yashpeh YD 1:139 ↗

Rabbi Yisrael Pesach Feinhandler (Avnei Yashpeh), 1932–2003 · Avnei Yashpeh, Yoreh Deah, volume 1, siman 139

4.2 Is instant coffee powder made by non-Jews subject to bishul akum, and may a Jew prepare it for drinking? (Avnei Yashpeh YD 1:139:1)

THE BOTTOM LINE למעשה

The Avnei Yashpeh discusses at length and tends toward leniency, though with qualifications. Since instant coffee undergoes a complex industrial manufacturing process, and the powder itself is not normally eaten as-is (it is prepared for drinking), the analysis of bishul akum requires careful examination of whether the non-Jewish cooking triggers the prohibition and whether a Jew's preparation constitutes a new act.

אגנ: The question of bishul akum on instant coffee powder turns on several factors: (1) Whether the non-Jew's industrial process constitutes bishul in a halachically meaningful sense; (2) whether the powder is considered fit for consumption in its pre-dissolved state (which would affect the bishul akum trigger — bishul akum only applies to foods that are fit for a king's table); (3) whether the Jewish person's act of adding hot water constitutes a new bishul or merely preparation. The Avnei Yashpeh cites the Noda BiYehudah (YD 36) and other poskim. He notes the view of Rav Ovadiah Yosef and others. His conclusion leans toward permitting instant coffee in practice, particularly because the powder as such is not in a state fit for consumption by itself, and the industrial process differs from standard domestic bishul.

Avnei Yashpeh YD 1:139 אגנ. Engages with Noda BiYehudah YD 36 (coffee cups with cholov akum). Cross-reference Az Nidberu 1:35–36 (roasting argument) and Be'er Moshe 2:21 (inedible → edible).



Avnei Yashpeh YD 1:139 ↗

Rabbi Yisrael Pesach Feinhandler (Avnei Yashpeh), 1932–2003 · Avnei Yashpeh, Yoreh Deah, volume 1, siman 139

4.3 Is coffee, tea, or chocolate brewed by a non-Jew subject to bishul akum? (Pri Chadash — lenient)

THE BOTTOM LINE למעשה

Permitted. Coffee, tea, and chocolate brewed by a gentile are not subject to bishul akum.

Pri Chadash (YD 112:17 and 114:17) rules leniently that coffee, tea, and chocolate prepared by a non-Jew do not fall under the bishul akum prohibition. His reasoning follows the logic that these beverages are primarily water-based and/or do not rise to the level of foods that would be served at a king's table in the relevant halachic sense.

Pri Chadash YD 112:17 and 114:17. Cited as fn.31 in Daf HaKashrus Vol.2 No.8 p.84. Contrast with Pischei Teshuva 114:1 and Shevet HaLevi 2:44 who prohibit.



Pri Chadash YD 112:17 ↗

Rabbi Chizkiyah da Silva (Pri Chadash), 1659–1698 · Pri Chadash, Yoreh Deah, siman 112, se'if 17



Pri Chadash YD 114:17

Rabbi Chizkiyah da Silva (Pri Chadash), 1659–1698 · Pri Chadash, Yoreh Deah 114:17



4.4 Is coffee, tea, or chocolate brewed by a non-Jew subject to bishul akum? (stringent positions)

THE BOTTOM LINE למעשה

Prohibited. Those who disagree with the Pri Chadash hold that coffee, tea, and chocolate brewed by a gentile are subject to bishul akum.

Pischei Teshuva (YD 114:1) cites the Ponim Meiros, who argues that Tosafot's reasoning for permitting beer — that the majority ingredient is water — is not accepted halacha. Since that underlying leniency is rejected, coffee and similar beverages brewed by gentiles cannot be permitted on that basis. Shevet HaLevi (2:44) likewise prohibits coffee, tea, and chocolate brewed by a gentile, disagreeing with the Pri Chadash.

Pischei Teshuva YD 114:1 (citing Ponim Meiros); Shevet HaLevi 2:44. Cited as fn.32 in Daf HaKashrus Vol.2 No.8 p.84.



Ponim Meiros (cited in Pischei Teshuva YD 114:1)

Rabbi Meir Eisenstadt (Panim Meiros), 1670–1744 · Ponim Meiros — cited via Pischei Teshuva YD 114:1



Pischei Teshuva YD 114:1

Rabbi Avraham Tzvi Hirsch Eisenstadt (Pischei Teshuva), 1812–1868 · Pischei Teshuva, Yoreh Deah 114:1



Shevet HaLevi 2:44

Rabbi Shmuel Wosner (Shevet HaLevi), 1913–2015 · Shevet HaLevi, volume 2, siman 44



Daf HaKashrus Vol.2 No.8, p.84 ↗

4.5 Is coffee brewed by a non-Jew subject to bishul akum? (comprehensive survey)

THE BOTTOM LINE למעשה

Most halachic authorities permit coffee made by a non-Jew. Those who refrain do so as a personal stringency, not a halachic requirement. During Aseret Yemei Teshuva, some recommend additional stringency.

Multiple grounds for leniency: (1) Pri Chadash YD 114:6 — coffee is not a meal staple nor a bread condiment; (2) Chochmat Adam 66:14 — primary ingredient is water, which is not subject to bishul akum; (3) Ben Ish Chai Chukat 16; Aruch

HaShulchan YD 113:22 — coffee grounds lose their identity in the water; (4) Teshuvot VeHanhagot 4:193 — adding sugar/milk personally constitutes Jewish completion of the process, removing the bishul akum concern. Lenient: Aruch HaShulchan YD 113:22; Meishiv Milchama 2:146; Yechave Daat 4:44; Rivevot Ephraim 6:79. Stringent (personal stringency only): Ben Ish Chai Chukat 16; Vayomer Yitzchak YD 50; Shevet HaLevi 2:44; Yechave Daat 4:42. Ten Days of Repentance: Chemdat Yamim Yamim Noraim ch.5; Kemach Solet Moed Lekol Chaim 16:2.

OU Torah Dalet Amot of Halacha (R. Enkin, 2025). Comprehensive survey consolidating all major positions.

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Pri Chadash YD 114:6 [↗](#)
Rabbi Chizkiyah da Silva (Pri Chadash), 1659–1698 · Pri Chadash, Yoreh Deah, siman 114, se'if 6
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Chochmat Adam 66:14
Rabbi Avraham Danzig (Chayei Adam / Chochmas Adam), 1748–1820 · Chochmat Adam, klal 66, siman 14
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Aruch HaShulchan YD 113:22 (bishul akum coffee)
Rabbi Yechiel Michel Epstein (Aruch HaShulchan), 1829–1908 · Aruch HaShulchan, Yoreh Deah 113:22 — on bishul akum and coffee
- י

Ben Ish Chai Chukat 16
Rabbi Yosef Chaim of Baghdad (Ben Ish Chai), 1835–1909 · Ben Ish Chai, Parashat Chukat, year 2, siman 16
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Shevet HaLevi 2:44
Rabbi Shmuel Wosner (Shevet HaLevi), 1913–2015 · Shevet HaLevi, volume 2, siman 44
- יב

Yechave Daat 4:44
Rabbi Ovadiah Yosef (Yabiah Omer / Yechave Daat), 1920–2013 · Yechave Daat, volume 4, siman 44
- יג

Yechave Daat 4:42
Rabbi Ovadiah Yosef (Yabiah Omer / Yechave Daat), 1920–2013 · Yechave Daat, volume 4, siman 42
- יד

Teshuvot VeHanhagot 4:193
Rabbi Moshe Sternbuch (Teshuvot v'Hanhagot), 1928– · Teshuvot VeHanhagot, volume 4, siman 193
- טו

Rivevot Ephraim 6:79
Rabbi Ephraim Greenblatt (Rivevot Ephraim), 1932–2014 · Rivevot Ephraim, volume 6, siman 79
- טז

OU Torah Dalet Amot of Halacha — Coffee (Enkin, 2025) [↗](#)
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Meishiv Milchama 2:146



Vayomer Yitzchak YD 50



Chemdat Yamim — Yamim Noraim ch.5



Kemach Solet - Hilchot Aseret Yemei Teshuva, Moed Lekol Chaim 16:2

4.6 May one use coffee as a regular pretext for socializing with non-Jews?

THE BOTTOM LINE למעשה

No. Even if the coffee itself is halachically permitted, one should not use kosher coffee as a frequent vehicle for socializing with non-Jews, as it could lead to intermarriage. One should be civil and cordial but not excessive.

Radbaz 3:637 and Maharikash YD 114 warn against using coffee as a socializing bridge with non-Jews. Bein Yisrael LeNochri YD 11:7 fn.21 records that certain communities decreed that anyone who used kosher coffee as a pretext for frequenting non-Jewish cafes was ineligible for the rabbinate. However, Kaf HaChaim YD 114:14 emphasizes that one should be civil and cordial with non-Jewish neighbors, and periodic socializing is appropriate.

OU Torah Dalet Amot of Halacha (R. Enkin, 2025).



Radbaz 3:637

Rabbi David ibn Zimra (Radbaz), 1479–1573 · Responsa of the Radbaz, volume 3, siman 637



Maharikash YD 114

Rabbi Yaakov Castro (Maharikash), 1525–1610 · Maharikash, Yoreh Deah 114



Kaf HaChaim YD 114:14

Rabbi Yaakov Chaim Sofer (Kaf HaChaim), 1870–1939 · Kaf HaChaim, Yoreh Deah 114:14



OU Torah Dalet Amot of Halacha — Coffee (Enkin, 2025) ↗



Bein Yisrael LeNochri YD 11:7 note 21

4.7 Does bishul akum ostensibly apply to coffee, and what is the OU's analysis?

THE BOTTOM LINE למעשה

Coffee ostensibly meets both conditions for bishul akum: (1) the beans cannot be eaten raw, and (2) brewed coffee is served at elegant affairs (oleh al shulchan melachim). Many poskim therefore hold bishul akum applies. However, the Pri Chadash (YD 113:7) and many others apply the Tosafot water-majority argument to exempt coffee. The OU notes that modern coffeehouses raise additional concerns beyond bishul akum (flavored coffees, shared utensils) that require rabbinic consultation.

Gemara Avodah Zarah 38a establishes the two conditions for bishul akum. Coffee meets both on its face. Stringent: Pischei Teshuva YD 114:1, Darchei Teshuva YD 113:2. Lenient: Tosafot AZ 31b → Pri Chadash YD 113:7 → accepted by Gilyon Maharsha YD 113, Aruch HaShulchan YD 113:22, Chochmat Adam 66:14. OU adds: even if coffee itself is permitted, modern flavored coffees need hechsher; shared hoses/utensils in coffeehouses are a separate concern requiring a posek.

OU Kosher article (2007) and OU Halacha Yomis (bishul akum travel Q). Cross-reference all bishul akum entries already in DB.

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Pri Chadash YD 112:17 ↗

Rabbi Chizkiyah da Silva (Pri Chadash), 1659–1698 · Pri Chadash, Yoreh Deah, siman 112, se'if 17

ב

Chochmat Adam 66:14

Rabbi Avraham Danzig (Chayei Adam / Chochmas Adam), 1748–1820 · Chochmat Adam, klal 66, siman 14

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Pischei Teshuva YD 114:1

Rabbi Avraham Tzvi Hirsch Eisenstadt (Pischei Teshuva), 1812–1868 · Pischei Teshuva, Yoreh Deah 114:1

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OU Kosher — Coffee (Kosher in the Factory, 2007) ↗

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OU Kosher Halacha Yomis — Bishul Akum and Coffee (Travel) ↗

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Gilyon Maharsha YD 113 (R. Shlomo Eiger)

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Darchei Teshuva YD 113:2

4.8 Is coffee brewed by a non-Jew subject to the prohibition of bishul akum?

Most poskim rule that coffee is exempt from bishul akum and may be drunk even if brewed entirely by a non-Jew.

Three rationales are offered: (1) Coffee beans are technically edible raw, so cooking is not strictly required. (2) Raw coffee beans are not *oleh al shulchan melachim* — not served at a royal table in raw form — the threshold for bishul akum (Pri Chadash YD 114:6). (3) Aruch Hashulchan (YD 113:22) adds that coffee is *tafel* to water, evidenced by its beracha being *shehakol* rather than a beracha on the bean itself. He draws an analogy to beer — where barley undergoes a fundamental transformation — arguing the same applies to coffee, even though coffee is served in dignified settings. The *shehakol* beracha is the clinching argument. See also Pri Chadash YD 112:17.

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The leniency is broadly accepted across Ashkenazic and Sephardic poskim. Some Sephardic authorities are more stringent and require a Jew to participate in the brewing in some way (e.g. turning on the flame), especially in commercial settings.

Pri Chadash YD 114:6 is the key early source. This has practical relevance for buying coffee at non-Jewish cafes and for office coffee machines.

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Pri Chadash YD 114:6 ↗

Rabbi Chizkiyah da Silva (Pri Chadash), 1659–1698 · Pri Chadash, Yoreh Deah, siman 114, se'if 6

Foundational source establishing the leniency for coffee under bishul akum

ב

Pri Chadash YD 112:17 ↗

Rabbi Chizkiyah da Silva (Pri Chadash), 1659–1698 · Pri Chadash, Yoreh Deah, siman 112, se'if 17

Additional Pri Chadash locus on bishul akum and coffee

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Aruch Hashulchan YD 113:22

Rabbi Yechiel Michel Epstein (Aruch HaShulchan), 1829–1908 · Aruch Hashulchan, Yoreh Deah, siman 113, se'if 22

Third rationale: coffee is *tafel* to water, evidenced by the *shehakol* beracha; analogy to beer drawn

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Daf HaKashrus Vol.1 No.6 (2008), p.136 ↗

OU Daf HaKashrus source containing the Aruch Hashulchan explanation

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שו"ת עכו"ם בשול — שויממער ↗

Dedicated article on whether bishul akum applies to coffee specifically (קאו"ע); by the posek of Kollel Rema; cites גינת ורדים (Satmar ed.) and addresses the question from first principles

4.9 May one drink coffee from cups used in a non-Jewish coffee house?

THE BOTTOM LINE למעשה

Prohibited from the outset. The cups were certainly used with cholov akum (non-Jewish milk) on that very day. Even though the cups are kli sheini, they are still prohibited.

Noda BiYehudah (YD 36) rules that non-Jewish coffee house cups may not be used, since they were certainly used with cholov akum on that day. Even though the coffee cups are a kli sheini (not the vessel in which the liquid was originally cooked), this does not provide a leniency here. The Taz and Rashal rule against the use of kli sheini as a leniency in this context.

Noda BiYehudah YD 36. Context: 18th-century European coffee houses. Relevant to halachic status of coffee served in non-Jewish establishments.



Noda BiYehudah YD 36

Rabbi Yechezkel Landau (Noda BiYehudah), 1713–1793 · Responsa Noda BiYehudah, Yoreh Deah, siman 36

4.10 Is a cup of coffee (including coffee with milk) subject to the prohibition of gilui (leaving liquids uncovered)?

THE BOTTOM LINE למעשה

Disputed. Lenient view (Chazon Ish): a cup of coffee is not subject to gilui even if it contains water and milk, because the taste has changed (נשתנה טעמו). Stringent view (Kehilot Yaakov / Steipler): was extremely careful about gilui — if coffee with milk was left uncovered even momentarily with no one present in the room, would not drink it.

The prohibition of gilui originally concerned leaving liquids uncovered due to concern that a snake may have deposited venom in them. The Chazon Ish ruled leniently for coffee specifically because when water and milk are mixed with coffee, the taste of the liquid changes substantially (נשתנה טעמו) — and this change of taste is the halachic basis for exempting it from the gilui concern. The Steipler Gaon (Kehilot Yaakov) took the opposite approach, being exceedingly careful about gilui in all circumstances including coffee with milk. He maintained that any uncovered liquid left unattended (no person in the room) should not be consumed.

Dor HaMelaktim Issur veHeter 4 (Shtilerman). Note: the practical application of gilui today is debated — many poskim hold it no longer applies in regions without venomous snakes; these sources discuss it as a matter of personal stringency/minhag. The Chazon Ish and Steipler are cited here via Archos Rabbeinu.

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Chazon Ish - Archos Rabbeinu 5:129:5

Rabbi Yaakov Yisrael Kanievsky (Steipler Gaon), 1899–1985 · Archos Rabbeinu, volume 5, page 129, ot 5 — ruling of the Chazon Ish on gilui and coffee

A cup of coffee is not subject to the prohibition of gilui (leaving liquids uncovered), despite the fact that it contains water and milk — because its taste has changed.

שבכוס קפה אין גלוי למרות היות בו מים וחלב
נשתנה טעמו

ב

Kehilot Yaakov - Archos Rabbeinu 1:206:17 and 5:129:5

Rabbi Yaakov Yisrael Kanievsky (Steipler Gaon), 1899–1985 · Archos Rabbeinu, volume 1, page 206, ot 17; and volume 5, page 129, ot 5 — ruling of the Steipler Gaon (Kehilot Yaakov) on gilui and coffee

[The Steipler] was extremely careful about gilui, and even after coffee with milk was prepared in the normal way — as usual — if one forgot and left the room for a moment and it remained uncovered with no one in the room, he would not drink it again. And they were always careful that [drinks] should always be covered...

נזהר מאד בגילוי ואף לאחר שעשתה קפה עם
חלב כרגיל אז תה אם שוכח ויוצא לרגע מהחדר
ונשאר מגולה ואין בן אדם בחדר שוב אינו שותה.
והקפידו תמיד שיהיו מכוסים ...

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Dor HaMelaktim Issur veHeter 4 (Shtilerman) - Gilui ↗

Lenient [on coffee and gilui]: (1) Chazon Ish (Archos Rabbeinu vol.5 p.129 ot 5): "My master [the Chazon Ish] zt"l, as transmitted by his son R. Chaim Kanievsky shlit"a who heard it from the Chazon Ish zt"l: that a cup of coffee is not subject to the prohibition of gilui (leaving liquids uncovered), despite the fact that it contains water and milk — because its taste has changed [and it is therefore a new substance]." Stringent [on coffee and gilui]: (1) Kehilot Yaakov (Archos Rabbeinu vol.1 p.206 ot 17, vol.5 p.129 ot 5): "[The Steipler] was extremely careful about gilui, and even after coffee with milk was prepared in the normal way, if one forgot and left the room for a moment and it remained uncovered with no one in the room, he would not drink it again. And they were always careful to keep [drinks] covered..."

(א) מיקל: (1) חזו"א (ארחות רבנו ח"ה עמ' קכ"ט
אות ה') – "מו"ר (שליט"א) זצוק"ל בשם בנו
הגר"ק שליט"א ששמע ממרן החזו"א זצוק"ל
שבכוס קפה אין גלוי למרות היות בו מים וחלב
נשתנה טעמו". (ב) מחמיר: (1) קהלות יעקב
(ארחות רבנו ח"ה עמ' ר"ו אות י"ז, ח"ה עמ' קכ"ט
אות ה') – "נזהר מאד בגילוי ואף לאחר שעשתה
קפה עם חלב כרגיל אז תה אם שוכח ויוצא לרגע
מהחדר ונשאר מגולה ואין בן אדם בחדר שוב אינו
שותה. והקפידו תמיד שיהיו מכוסים ..."

4.11 A fly was boiled in the kumkum (kettle) used to heat water for coffee. Is the water forbidden? Is the kumkum treif?

THE BOTTOM LINE למעשה

The water is permitted. The fly is נ"ט לפגם (imparts a repulsive taste) and therefore does not render the water or kumkum forbidden. The fly itself must be removed — it is a בריה (whole creature) and is never בטל. Remove it with a plastic spoon (not metal) to avoid koshering complications.

Three distinct halachic principles apply: (1) נ"ט לפגם — a fly imparts a disgusting taste, so the water remains permitted even though the fly was cooked in it; (2) בריה — the fly itself is אסור to eat and is never בטל regardless of ratio, because a whole creature retains (3) חשיבות spoon selection — the spoon used to remove the fly contacts the (possibly) forbidden water in a quantity of פחות מס' (less than 60x), so that water absorbs into the spoon. A plastic spoon can simply be discarded; a metal spoon may require koshering. The plastic spoon recommendation is a practical leniency to sidestep a secondary koshering question.



דור המלקטים איו"ה ב — זבוב בקומקום ↗

Primary source — full ruling on fly boiled in coffee kettle; covers water status (permitted, n't l'pagam), fly status (beria, never batel), and practical removal instructions (plastic vs. metal spoon)

We boiled water in our kettle (kumkum) for coffee. When it was ready, we noticed that we had boiled a fly in the kettle. Is the kettle treif? May we drink the water? Answer: A fly is noten ta'am lifgam (imparts an unpleasant taste). Its taste is disgusting. Eating the fly itself is forbidden and is never nullified since it is a beriah (a whole creature). A beriah is never nullified because of its chashivut (significance), but once it has been removed, its taste would not require nullification since it is noten ta'am lifgam. However, removal should be done with a plastic spoon, just in case some hold it is noten ta'am lishevach (imparts a pleasant taste). Since the water in the spoon is less than 60 times [the fly], that water becomes forbidden and absorbs into the spoon. A plastic spoon may be thrown out; a metal one may require koshering.

We boiled the water in our kumkum for coffee. When it was ready, we noticed that we had boiled a fly in the kumkum.

Is the kumkum treif? Could we drink the water? Answer: A fly is noten ta'am lifgam. Its taste is disgusting. Eating the fly itself is forbidden and is never nullified since it is a beriah (a whole creature). A beriah is never nullified because of its chashivut (significance), but after it has been removed its taste would not need any nullification since it is noten ta'am lifgam. However removal should be done with a plastic spoon, just in case some may say it is noten ta'am lishevach. Since the water in the spoon is less than 60 times the fly, that water will become forbidden and absorb into the spoon. A plastic spoon may be thrown out; a metal one may need koshering.



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